

		specific facts justifying each category of materials sought to be produced]; see also Spiegel Decl., in passim.) <u>Form interrogatories.</u> Contrary to defendant’s contentions, defendant’s responses to the subject form interrogatories at issue effectively are objections on the grounds that they assume facts not in evidence, namely, “that [the] ‘INCIDENT’ took place.” (See Pl. Sep. Stmt., pp. 19-49; see also Spiegel Decl. at Ex. 11 [responses to form interrogatories].) As discussed above, defendant has waived any such objection by failing to serve timely responses, and there is no objection to an interrogatory on the ground that it assumes facts in any event. (See <i>West Pico Furniture Co. of Los Angeles v. Superior Court</i> (1961) 56 Cal.2d 407, 421; see Code Civ. Proc., § 2030.010.) Moreover, the objection would lack merit because the form interrogatories specifically define the term “INCIDENT” to mean “the circumstances and events surrounding the alleged accident, injury, or other occurrence ... giving rise to this action or proceeding.” (Spiegel Decl. at Ex. 4 [form interrogatories § 4(a)(1)].) Some of defendant’s responses to the subject form interrogatories also fail to answer the call of the question (for example, defendant’s responses to Form Interrogatory Nos. 2.11, 12.1-12.6, among others). (See <i>Deyo, supra</i>, 84 Cal.App.3d at p. 783 [“deftly worded conclusionary answers designed to evade a series of explicit questions” are improper].) <u>Special interrogatories.</u> Defendant’s responses to the subject special interrogatories are not complete and to this Court, fail to fully answer the call of these questions. (See <i>Regency Health Services, supra</i>, 64 Cal.App.4th at p. 1504 [duty to conduct a reasonable investigation to obtain responsive information and furnish information from all sources under his or her control]; <i>Deyo, supra</i>, 84 Cal.App.3d at p. 783.) Plaintiff shall give notice.
5.	Kennedy vs. Emanuel 22-01248389	Motion to Seal Plaintiffs Drake Kennedy and Stephanie Kennedy’s Motion to Seal is DENIED. (Cal. Rules of Court, Rule 2.550.) In this situation, Plaintiffs have not made a sufficient factual showing of an overriding interest that supports sealing the records. (Cal Rules of Court, Rule 2.550, subd. (d).) It appears that Defendants have designated these records as confidential pursuant to the Parties’ stipulated protective order. (See ROA 199.) Defendants shall have 30 days from notice of this ruling to file a Motion to Seal that includes a declaration and admissible

		evidence establishing each of the factors outlined in Cal. Rules of Court, Rule 2.550, subd. (d). The Clerk to give notice of this ruling.
6.	Wells Fargo Bank vs. Noble Ale Works Inc. 24-01428508	Motion to Deem Facts Admitted OFF CALENDAR. NTS FILED
7.	Harper vs. Wells 25-01532690	1. Demurrer to Complaint 2. Case Management Conference 3. Order to Show Cause re: Dismissal (Failure to Serve) <u>Defendant Erinn Wells' Demurrer to Plaintiff Donica Harper's Complaint</u> Defendant Erin Wells' unopposed demurrer to Plaintiff Donica Harper's Complaint is SUSTAINED. (Code Civ. Proc. §430.10, subds. (d) and (e).) In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) Questions of fact cannot be decided on demurrer. (<i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) Partition is an equitable action that is governed by statute. (Code Civ. Proc. § 872.010 et seq.) “ ‘ “[P]artition” is “the procedure for segregating and terminating common interests in the same parcel of property.” ’ [Citation.] It is a ‘ “ ‘remedy much favored by the law.’ ” ’ ” (<i>Summers v. Superior Ct.</i> (2018) 24 Cal.App.5th 138, 142.) “[P]artition, which is frequently denominated an absolute right [citation], is subject to waiver, and also to estoppel and similar equitable defenses.” (<i>Thomas v. Witte</i> (1963) 214 Cal.App.2d 322, 327.) The right of partition may be waived by contract, either express or implied